

SENATE No. 2874

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 31, 2025.

The committee on Transportation to whom was referred the petition (accompanied by bill, Senate, No. 2368) of Julian Cyr, Joanne M. Comerford, David Paul Linsky, Jason M. Lewis and other members of the General Court for legislation to end debt-based driving restrictions and remove economic roadblocks, report the accompanying bill (Senate, No. 2874).

For the committee,
Brendan P. Crighton

SENATE No. 2874

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase opportunity by ending debt-based driving restrictions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13 of chapter 6C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (c) the following subsection:-

3 (d) The department shall regularly review all outstanding tolls, fines, fees, penalties, and
4 other debts assessed under the EZDriveMA system described in 700 CMR 11.02. Each month,
5 the department shall identify persons owing tolls, fines, fees, penalties, or other debts exceeding
6 \$100 and shall use best efforts to contact such persons regarding their debt; provided, however,
7 that for purposes of this subsection, “best efforts” shall include, but not be limited to, comparing
8 address information with the national change of address registry, communicating with the person
9 by email, and calling the person’s cell and home phone. The department shall provide such
10 persons with a description of the debt owed, the amount due, the payment due date, instructions
11 for payment, and information on the right to contest responsibility, request a reduction or waiver,
12 or request a payment plan.

SECTION 2. Section 2A of chapter 60A of the General Laws, as so appearing, is hereby amended by striking out, in lines 31 to 32, the words “the license to operate a motor vehicle of the registered owner of said vehicle or”.

SECTION 3. Section 47B of chapter 62C of the General Laws is hereby repealed.

SECTION 4. Section 20A of chapter 90 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the twenty-first and twenty-second sentences.

SECTION 5. Section 20E of said chapter 90, as so appearing, is hereby amended by striking out paragraph (d).

SECTION 6. Section 20G of said chapter 90 is hereby repealed.

SECTION 7. Section 20H of said chapter 90 is hereby repealed.

SECTION 8. Section 22G of said chapter 90 is hereby repealed.

SECTION 9. Section 23 of said chapter 90 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the first sentence and inserting in place thereof the following sentences:- Any person convicted of operating a motor vehicle after his license to operate has been suspended or revoked, or after notice of the suspension or revocation of his right to operate a motor vehicle without a license has been issued by the registrar and received by such person or by his agent or employer, and prior to the restoration of such license or right to operate or to the issuance to him of a new license to operate, and any person convicted of operating or causing or permitting any other person to operate a motor vehicle after the certificate of registration for such vehicle has been suspended or revoked and prior to the restoration of such registration or to the issuance of a new certificate of registration for such

vehicle, shall be punished by a fine of not more than \$500. Any person who exhibits to an officer authorized to make arrests, when requested by said officer to show his license, a license issued to another person with intent to conceal his identity, shall be punished for a first offence by a fine of not less than \$500 nor more than \$1,000 or by imprisonment for not more than 10 days, or both, and for any subsequent offence by imprisonment for not less than 60 days nor more than one year, and any person who attaches or permits to be attached to a motor vehicle or trailer a number plate assigned to another motor vehicle or trailer, or who obscures or permits to be obscured the figures on any number plate attached to any motor vehicle or trailer, or who fails to display on a motor vehicle or trailer the number plate and the register number duly issued therefor, with intent to conceal the identity of such motor vehicle or trailer, shall be punished by a fine of not more than \$100 or by imprisonment for not more than 10 days, or both.

SECTION 10. Said section 23 of said chapter 90, as so appearing, is hereby further amended by striking out, in lines 40 to 41, inclusive, the words “without a prior written notice from the registrar mandating payment thereof.”

SECTION 11. Subsection (a) of section 26A of said chapter 90, as so appearing, is hereby amended by striking out the last sentence.

SECTION 12. Section 34J of said chapter 90, as so appearing, is hereby amended by striking out, in lines 40 to 42, inclusive, the words “his or her license or right to operate a motor vehicle suspended for sixty days by the registrar of motor vehicles” and inserting in place thereof the following words:- their motor vehicle registration suspended.

SECTION 13. The third paragraph of said section 34J of said chapter 90, as so appearing, is hereby amended by striking out the fifth sentence.

SECTION 14. Section 3 of chapter 90C of the General Laws, as so appearing, is hereby amended by inserting, in line 12, after the word “infraction” the following words:- or request an assessment reduction or waiver based on financial hardship.

SECTION 15. Clause (3) of subsection (A) of said section 3 of said chapter 90C, as so appearing, is hereby amended by adding the following paragraph:-

The registrar shall regularly review all outstanding tolls, fines, fees, penalties, and other debts assessed by the registrar. Each month, the registrar shall identify persons owing tolls, fines, fees, penalties, or other debts exceeding \$100 and shall use best efforts attempt to contact such persons regarding their debt; provided, however, that for purposes of this subsection, “best efforts” shall include, but not be limited to, comparing address information with the national change of address registry, communicating with the person, vehicle owner, or account holder by email, and calling the person, vehicle owner, or account holder’s cell and home phone. The registrar shall provide such persons with a description of the debt owed, the amount due, the payment due date, instructions for payment, and information on the right to contest responsibility, request a reduction or waiver, or request a payment plan.

SECTION 16. Clause (4) of said subsection (A) of said section 3 of said chapter 90C, as so appearing, is hereby amended by striking out the first sentence and inserting in place thereof the following sentences:- An individual may contest responsibility for the infraction or request an assessment reduction or waiver by making a signed request for a noncriminal hearing on the citation and mailing such citation, together with a \$25 court filing fee, to the registrar at the address indicated on the citation within 20 days of the issuance of the citation; provided, however, that the court filing fee shall be waived and refunded if the court finds that the

individual is not responsible for the infraction or approves an assessment reduction or waiver. If a request for a noncriminal hearing is not made within 20 days of the issuance of the citation, the court may grant the request for good cause.

SECTION 17. Said clause (4) of said subsection (A) of said section 3 of said chapter 90C, as so appearing, is hereby further amended by adding at the end of the second paragraph the following sentence:- This paragraph shall not apply to an individual requesting an assessment reduction or waiver.

SECTION 18. Said section 3 of said chapter 90C, as so appearing, is hereby amended by inserting, in line 100, after the word “assessment” the following words:- or the individual requests an assessment reduction or waiver.

SECTION 19. Clause (4) of subsection (A) of said section 3 of said chapter 90C, as so appearing, is hereby amended by adding the following paragraphs:-

Any individual owing tolls, fines, fees, penalties, or other debts, including but not limited to administrative, late, or reinstatement fees, and who is ineligible for a waiver pursuant to clause (6) of this subsection, may request a noncriminal hearing to seek a reduction or waiver of such assessments or a monthly payment plan based on financial hardship; provided, however, that this paragraph shall not apply to fees that may subject an individual to license suspension or nonrenewal. In assessing financial hardship, the magistrate or justice shall consider the individual’s non-exempt monthly net income, their number of dependents, and any other relevant factors. If the magistrate or judge finds that full payment would cause financial hardship to the individual and any dependents, but the individual retains the ability to make a partial payment, the magistrate or judge shall issue written findings setting forth the basis for such determination.

Any time an individual fails to make a timely payment under the terms of a payment plan ordered by the court pursuant to this clause, the registrar shall notify the individual of the missed payment and of their right to request a modification to the terms of their payment plan based on a material and substantial change in circumstances. If the individual owes more than four months of payments and does not have a pending request for modification, the registrar may take appropriate action to pursue the outstanding debt through permissible enforcement efforts. License suspension, license nonrenewal, and registration suspension shall not be imposed as a penalty for nonpayment.

SECTION 20. Clause (6) of said subsection (A) of said section 3 of said chapter 90C, as so appearing, is hereby amended by striking out subparts (a) and (b) and inserting in place thereof the following subparts:--

(a) If a violator:

(i) fails either to pay the full amount of the scheduled assessment to the registrar or to request a noncriminal hearing within 20 days of the date of the citation plus such grace period as the registrar shall allow, or

(ii) fails to appear for a noncriminal hearing before a magistrate or a justice at the time required after having been given notice of such hearing either personally or by first class mail directed to such violator's mail address as reported to the registrar and after notice of such failure has been given to the registrar by the clerk-magistrate, the registrar shall notify such violator by first class mail directed to such violator's mail address that unless and until the violator pays to the registrar the full amount of the scheduled or imposed assessments for such civil motor vehicle infractions, plus any late or other administrative fees provided for by law or regulation,

any registration of a motor vehicle issued to such violator by the registrar shall not be renewed upon or after the expiration date of such registration, unless such fees are waived in whole or in part by the registrar.

(b) The registrar shall waive all unpaid fines or fees, including late, administrative, and reinstatement fees, for any individual who is a recipient of any needs-based public assistance or whose income and assets are exempt pursuant to 34 of chapter 235; provided, however, that this subpart shall not apply to fees that may subject an individual to license suspension or nonrenewal.

SECTION 21. Clause (3) of subsection (B) of said section 3 of said chapter 90C, as so appearing, is hereby amended by striking out subparts (b) and (c) and inserting in place thereof the following subpart:-

(b) fails to pay within the time allowed the full amount of a fine, penalty, assessment, or other lawful amount required by a justice pursuant to law, the clerk-magistrate shall notify the registrar. Such notice to the registrar may be given more than once in the same case if necessary.

SECTION 22. Said section 3 of said chapter 90C, as so appearing, is hereby amended by striking out the forty-eighth and forty-ninth sentences and inserting in place thereof the following sentences:- Upon receipt of such notice, the registrar shall revoke any certificate of registration or title, number plate, sticker, decal or other item issued by the registrar and held by the violator and order the return thereof forthwith. The registrar shall notify the individual at their mail address or last known address that they may not renew, apply for, or receive any such item issued by the registrar unless and until the individual presents the registrar with a certificate of the clerk-magistrate of the court that the matter has been fully disposed of in accordance with

144 law or, in the case of a matter still pending before the court, that the individual is attending to the
145 matter to the satisfaction of the court.

146 SECTION 23. Section 101 of Chapter 159 of the General Laws, as so appearing, is
147 hereby amended by striking out the sixth sentence.

148 SECTION 24. Said section 101 of said chapter 159, as so appearing, is hereby further
149 amended by striking out the tenth sentence.

150 SECTION 25. Said section 101 of said chapter 159, as so appearing, is hereby further
151 amended by striking out the twelfth sentence.

152 SECTION 26. Section 2A of chapter 211D of the General Laws, as so appearing, is
153 hereby amended by striking out the last sentence of subsection (h).

154 SECTION 27. The Massachusetts Department of Transportation shall, within one year of
155 the effective date of this Act, update the regulations contained in 700 C.M.R.7.00 et seq to
156 permit any individual owing tolls, fines, fees, or penalties under the EZDriveMA program to
157 seek a waiver, reduction or payment plan consistent with the procedure set forth in section 3 of
158 chapter 90C of the General Laws. These regulations shall provide that: (i) payments under a
159 payment plan shall not exceed 2% of an individual's non-exempt monthly net income; (ii) upon
160 receipt of the first payment due under a monthly payment plan, the department shall not charge
161 any additional fines or fees on existing debts for late payment or failure to pay; (iii) the
162 department shall accept automatic monthly payments by credit or debit card on file with the
163 department and payments made by check or money order received by mail or in person; (iv)
164 payment plans may be modified upon a determination that there has been a material and
165 substantial change in circumstances; (v) any time an individual fails to make a timely payment,

166 the department shall notify the individual of the missed payment and of their right to request a
167 modification based on a material and substantial change in circumstances; (vi) if the individual
168 owes more than four months of payments and does not have a pending request for modification,
169 the department may take appropriate action to pursue the outstanding debt through permissible
170 enforcement efforts; and (vii) license suspension, license nonrenewal, and registration
171 suspension shall not be imposed as a penalty for nonpayment.

172 SECTION 28. Notwithstanding any general or special law to the contrary, within three
173 months of the effective date of this Act, the registrar of motor vehicles shall reinstate all licenses,
174 privileges to operate a motor vehicle, and registrations no longer subject to suspension,
175 nonrenewal, or revocation after passage of this Act. The registrar shall notify such individuals by
176 first class mail of such reinstatement, along with an account of any unpaid assessments,
177 instructions on how to pay such assessments, and information regarding the right to request a
178 noncriminal hearing to contest responsibility or to request a waiver, reduction, or payment plan.